

STATE OF NEW YORK

10328--A

IN ASSEMBLY

February 20, 2026

Introduced by M. of A. STIRPE, MAGNARELLI, HUNTER -- read once and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the criminal procedure law, in relation to granting peace officer status to security officers employed by St. Joseph's Health Hospital, North Medical Center and Northeast Medical Center

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 2.10 of the criminal procedure law is amended by
2 adding a new subdivision 88 to read as follows:

3 88. Security officers employed by St. Joseph's Health Hospital,
4 located at 301 Prospect Avenue in the city of Syracuse; North Medical
5 Center, located at Taft Road in the village of North Syracuse; and
6 Northeast Medical Center, located at Northeast Medical Center Drive,
7 Suite 301 in the village of Fayetteville, when acting pursuant to their
8 special duties on the grounds or premises owned, controlled or adminis-
9 tered by such hospital or any of its subsidiaries, shall have the powers
10 of peace officers within such geographic area and beyond such area upon
11 the request of the chief law enforcement officer of the local law
12 enforcement jurisdiction or such officer's designee for the purpose of
13 transporting an individual who has been arrested in accordance with
14 section 140.27 of this chapter when no local law enforcement officer is
15 available to transport such individual in a timely manner. Such peace
16 officers shall have the powers set forth in paragraphs (a), (b), (c),
17 (d), (e) and (h) of subdivision one of section 2.20 of this article and
18 the power to detain an individual for a reasonable period of time while
19 awaiting the arrival of law enforcement, provided that such peace offi-
20 cer has actual knowledge, or probable cause to believe, that such indi-
21 vidual has committed an offense; provided, however, that nothing in this
22 subdivision shall be deemed to authorize such officer to carry, possess,
23 repair or dispose of a firearm unless the appropriate license therefor
24 has been issued pursuant to section 400.00 of the penal law.

25 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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